



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 32125426

Date: JAN. 17, 2025

Appeal of Nebraska Service Center Decision

Form I-140, Immigrant Petition for Alien Workers (National Interest Waiver)

The Petitioner, a software quality assurance analyst and tester, seeks employment-based second preference (EB-2) immigrant classification as a member of the professions holding an advanced degree, as well as a national interest waiver of the job offer requirement attached to this classification. *See* Immigration and Nationality Act (the Act) section 203(b)(2), 8 U.S.C. § 1153(b)(2).

The Director of the Nebraska Service Center denied the petition, concluding that the record does not establish that the Petitioner is eligible for a national interest waiver as a matter of discretion. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

To qualify for the underlying EB-2 visa classification, a petitioner must establish they are an advanced degree professional or an individual of exceptional ability in the sciences, arts, or business. Section 203(b)(2)(A) of the Act.

An advanced degree is any U.S. academic or professional degree or a foreign equivalent degree above that of a bachelor's degree. A U.S. bachelor's degree or foreign equivalent degree followed by five years of progressive experience in the specialty is the equivalent of a master's degree. 8 C.F.R. § 204.5(k)(2).

If a petitioner establishes eligibility for the underlying EB-2 classification, they must then demonstrate that they merit a discretionary waiver of the job offer requirement "in the national interest." Section 203(b)(2)(B)(i) of the Act *Matter of Dhanasar*, 26 I&N Dec. 884, 889 (AAO 2016) provides the framework for adjudicating national interest waiver petitions. *Dhanasar* states that U.S.

Citizenship and Immigration Services (USCIS) may, as matter of discretion,¹ grant a national interest waiver if the petitioner demonstrates that:

- The proposed endeavor has both substantial merit and national importance;
- The individual is well-positioned to advance their proposed endeavor; and
- On balance, waiving the job offer requirement would benefit the United States.

Dhanasar, 26 I&N Dec. at 889.

II. ANALYSIS

The Petitioner is a software quality assurance analyst and tester whose proposed endeavor is to work in this field in the United States. The Director determined that the Petitioner established his eligibility for the EB-2 classification as a member of the professions holding an advanced degree. However, the Director concluded that the Petitioner did not establish eligibility for a national interest waiver. On appeal, the Petitioner contends that the Director erred in this finding. We conclude the record does not establish the Petitioner's proposed endeavor is of national importance and therefore he is not eligible for a national interest waiver as a matter of discretion.

A. EB-2 Classification

The Petitioner submitted a diploma and transcripts for his foreign degree in electrical engineering along with an academic evaluation that states his degree is equivalent to a U.S. bachelor of science degree in electrical engineering. In addition, the Petitioner submitted employment letters that establish five years of progressive experience in the specialty. The Director concluded that the Petitioner qualifies as a member of the professions holding an advanced degree and we agree.

B. National Interest Wavier

1. Substantial Merit

The first prong, substantial merit and national importance, focuses on the specific endeavor that the individual proposes to undertake. The endeavor's merit may be demonstrated in a range of areas such as business, entrepreneurialism, science, technology, culture, health, or education. *Id.* The Petitioner states his proposed endeavor is to continue working as a software quality assurance analyst and tester in the United States. The record includes industry reports and articles on the importance of software quality assurance and testing, and the current state of this field and its impact. We conclude that the Petitioner's work has substantial merit.

¹ See *Flores v. Garland*, 72 F.4th 85, 88 (5th Cir. 2023) (joining the Ninth, Eleventh, and D.C. Circuit Courts in concluding that USCIS' decision to grant or deny a national interest waiver is discretionary in nature).

2. National Importance

In determining whether the proposed endeavor has national importance, we consider its potential prospective impact. *Dhanasar*, 26 I&N Dec. at 889. Before we discuss potential prospective impact, we note that the Petitioner did not describe the proposed endeavor in sufficient detail when he filed the petition. In the initial filing, the Petitioner stated that his proposed endeavor is “to continue development as an excellent analyst and software quality tester” in the United States as an independent contractor, and generally described the duties of the position while adding that he had two offers from U.S. employers. In response to the request for evidence (RFE), the Petitioner stated that he accepted one of the offers as a senior testing development engineer and he is working on his employer’s emergency alert system project, along with other projects. On appeal, the Petitioner states that his proposed endeavor is to “continue developing emergency alert systems.” However, developing an emergency alert system is a project associated with the Petitioner’s new employer, and the Petitioner’s endeavor did not include this project at the time of filing. Therefore, to characterize this project as his proposed endeavor in response to the RFE and on appeal would be material change in his proposed endeavor. A petitioner may not make material changes to a petition that has already been filed in an effort to make a deficient petition conform to USCIS requirements. *Matter of Izummi*, 22 I&N Dec. 169, 175 (Assoc. Comm’r 1998). However, since the Petitioner was not previously notified that we would consider this as a material change and did not have an opportunity to brief this issue, we will discuss this project as part of the overall proposed endeavor as a software quality assurance analyst and tester.

On appeal, the Petitioner contends that the Director erred in finding his proposed endeavor lacks national importance. He first states that his proposed endeavor has national or even global implications as he is working on an emergency alert system for which his employer has partnered with the U.S. government. According to *Dhanasar*, an undertaking may have national importance for example, because it has national or even global implications within a particular field, such as those resulting from certain improved manufacturing processes or medical advances. *Dhanasar*, 26 I&N Dec. at 889. The record is unclear as to how much of this project’s impact is attributable to the Petitioner or his employer. For example, it is unclear how much impact his specific contributions will have on the system and if his work has broader implications for his field. The record establishes he is working on this project and has made contributions to the project, however without more information about what his role is in implementation of the project, we cannot determine his prospective impact. Therefore, even if the project’s impact could have national or global implications, the record does not establish that the Petitioner’s specific role would have national or global implications.

The Petitioner discusses another project through his employer- the android automation operating system. The Petitioner points to his “deep knowledge of this system” and uses as an example from his past experience; working on software used in cars to prevent accidents. In determining whether the proposed endeavor has national importance, we consider its potential prospective impact. *Id.* While we acknowledge his experience and the positive outcomes resulting from his past work, this does not establish the national importance of his work as it does not speak to the prospective impact of a proposed endeavor. While past experience can be persuasive for prong two analysis, whether the Petitioner is well-positioned to advance the proposed endeavor, it does not sufficiently establish claim of national importance.

The Petitioner contends that his proposed endeavor would broadly enhance societal welfare. He emphasizes his work on the emergency alert system project which he states, “contributes to national security, saves lives and reduces material losses.” He also states that his employer has partnerships with nearly every auto manufacturer and is the primary satellite radio provider for 75% of new vehicles sold in the U.S., which speaks to the broadness of its audience. In addition, he states that his employer offers channels to its customers that have “a positive impact on the mental health of Americans.” This focuses on the impact the Petitioner’s employer has on its clients but does not establish an impact directly attributable to the Petitioner or his specific proposed contributions. Even if we were to directly attribute this impact to the Petitioner, the record itself does not contain sufficient evidence to support these statements. His statements alone are not enough as a petitioner must support assertions with relevant, probative, and credible evidence. *See Matter of Chawathe*, 25 I&N Dec. at 376.

The Petitioner asserts that his proposed endeavor would reduce a national shortage of IT engineers and submits articles on the shortage of workers in the IT industry. The Petitioner states he will address this shortage by training and mentoring younger IT professionals and university students, helping increase the pipeline of software professionals available for the U.S. labor market. In addition, he proposes to volunteer by offering free courses in this field. In *Dhanasar*, we determined that the Petitioner’s teaching activities did not rise to the level of having national importance because they would not impact his field more broadly. *Dhanasar*, 26 I&N Dec. at 893. Therefore, we cannot conclude that his teaching activities reach the level of national importance. In addition, a shortage of qualified professionals does not render the work of an individual nationally important under the *Dhanasar* decision. Here, the Petitioner has not established that his specific contribution stands to broadly impact or significantly reduce the claimed national shortage. Moreover, shortages of qualified workers are directly addressed by the U.S. Department of Labor through the labor certification process.

The Petitioner states that his proposed endeavor impacts a matter that a government entity has described as having national importance by highlighting the partnership his employer has with the U.S. government and the emergency alert system he is working on. As stated above, it is unclear how much of this project encompasses the Petitioner’s proposed endeavor and how much of its impact would be directly attributable to the Petitioner. In addition, this partnership is with his employer, and not with him or his specific proposed endeavor, of which this project is just a part of. In addition, the Petitioner emphasizes that his proposed endeavor is in the STEM field. Although the Petitioner’s work may be in the STEM field, the Petitioner must still establish his proposed endeavor has national importance as it is presented in the *Dhanasar* framework. While his work may fall into this category, that alone does not mean it rises to the level of national importance. The proposed endeavor itself must still meet the level of prospective impact set forth in *Dhanasar*.

Finally, the Petitioner contends that the Director, “failed to give due weight to the expert opinion letter.” As a matter of discretion, we may use opinion statements submitted by a petitioner as advisory. *Matter of Caron Int’l, Inc.*, 19 I&N Dec. at 795. However, we are ultimately responsible for making the final determination regarding an individual’s eligibility for the benefit sought; the submission of expert opinion letters is not presumptive evidence of eligibility. *Id.*; *see also Matter of V-K-*, 24 I&N Dec. 500, 502 n.2 (BIA 2008) (“[E]xpert opinion testimony, while undoubtedly a form of evidence, does not purport to be evidence as to ‘fact’ but rather is admissible only if it will assist the trier of fact to understand the evidence or to determine a fact in issue.”). The expert opinion letter reiterates many of the points we have addressed above. While the author of the expert opinion letter states that the

Petitioner's proposed endeavor has potential to, "improve national security, generate jobs and tax revenue, strengthen U.S. companies. . . and to transfer knowledge and skills," the letter and the record itself do not establish this without relevant, probative, and credible evidence to support these assertions. *See Matter of Chawathe*, 25 I&N Dec. at 376. The expert opinion letter also highlights the Petitioner's experience in the field and discusses the IT field in general and its importance to companies and the economy. This does not address the Petitioner's specific work or its potential prospective impact as it speaks to the importance of the IT field and not the Petitioner's proposed endeavor. Lastly, the letter discusses the shortage of workers in the field, which we have addressed above.

While we do not discuss each piece of evidence individually, we have reviewed and considered the record in its entirety. As the Petitioner's proposed work does not meet the first prong of the *Dhanasar* framework, the Petitioner has not demonstrated eligibility for a national interest waiver. Because the Applicant/Petitioner is ineligible for a national interest waiver, we need not reach, and therefore reserve, remaining *Dhanasar* prongs. *See INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (per curiam) (holding that agencies are not required to make "purely advisory findings" on issues that are unnecessary to the ultimate decision).

III. CONCLUSION

The Petitioner has not met the requisite first prong of the *Dhanasar* analytical framework. We therefore conclude that the Petitioner has not established by a preponderance of the evidence that he is eligible for or otherwise merits a national interest waiver as a matter of discretion.

ORDER: The appeal is dismissed.